

****Non-designation of a Data Protection Officer: CNIL Sanctions the Municipality of Kourou****

****December 19, 2023****

On December 12, 2023, the CNIL imposed a fine and a formal notice under penalty against the municipality of Kourou for failing to designate a Data Protection Officer (DPO) and for not cooperating with the CNIL services.

****The Context****

On April 25, 2022, the President of the CNIL made public formal notices targeting 22 municipalities that had not designated a DPO, in violation of the obligations set forth by the GDPR.

The municipalities had a period of 4 months to comply. At the end of this period, the municipality of Kourou had neither made this designation nor responded to the CNIL services.

The President of the CNIL thus decided to initiate, initially, a simplified sanction procedure. Under this procedure, the president of the restricted formation (the body of the CNIL responsible for imposing sanctions) issued a first non-public fine of 5,000 euros and a formal notice to comply within a period of three months.

At the end of this period, and given the persistence of the violations – the municipality of Kourou having neither designated a DPO nor responded to the CNIL – the President of the CNIL decided to initiate a new sanction procedure, but this time within the framework of the ordinary procedure, allowing the restricted formation to adopt a public sanction.

****A Sanction for Failing to Designate a Data Protection Officer and Not Cooperating with the CNIL****

Municipalities, as public authorities, are obliged to designate a Data Protection Officer (Article 37 of the GDPR).

The restricted formation first recalled the importance of the missions and role of the Data Protection Officer, who serves as the privileged contact for agents and residents of the municipality on all matters relating to data protection.

The restricted formation then noted that, in addition to the absence of designation of a Data Protection Officer, the municipality had never responded to the CNIL, despite the various procedures it had been subject to.

Consequently, the restricted formation of the CNIL again imposed a fine of 5,000 euros and a formal notice to comply within a period of two months, accompanied by a penalty of 150 euros per day of delay.

Furthermore, it reinforced this sanction in two ways: on the one hand, by making it public, and on the other hand, by ordering the municipality to display an information message for users on its website for four days.

****Reference Text****

****The Decision****

Deliberation of the restricted formation no. SAN-2023-018 of December 12, 2023, concerning the municipality of KOUROU - Légifrance

****Reference Text****

****For Further Reading****

- Sanction Procedures
- The Data Protection Officer (DPO)
- Designating a Data Protection Officer in a Local Authority
- The CNIL Issues Formal Notices to Twenty-Two Municipalities to Designate a Data Protection Officer
- Designation of a Data Protection Officer: Summary of Formal Notices Issued Against 22 Municipalities

****Reference Text****

****The Reference Texts****

- Article 31 of the GDPR (cooperation with the data protection authority)
- Articles 37 to 39 of the GDPR (designation of a DPO)

#Sanction #GDPR #DataProtectionOfficer #LocalAuthorities